

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DONTAY McDONALD

Plaintiff

-against-

THE CITY OF NEW YORK, SERGEANT SWIFT
(shield No.26931), P.O. QUIZHPI
(shield # unknown) and P.O."JOHN DOES and
"JANE DOES 1-5" (shield No's unknown) said names
being fictitious and unknown,

Defendants.
-----X

To the above named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to
serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a
Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this
Summons, exclusive of the day of service (or within 30 days after the service is complete if this
summons is not personally delivered to you within the State of New York); and in the case of
your failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the Complaint.

Dated: New York, New York
November 28, 2016

BURNS & HARRIS
Attorney for Plaintiff(s)

Index No.
Date Filed:
Plaintiff designates
KINGS County as
the place of trial

The basis of venue is
Place of occurrence

SUMMONS



DAVID L. HENDERSON
233 Broadway – Suite 900
New York, New York 10279
(212) 393-1000

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SERGEANT SWIFT
(shield No.26931)
1 Police Plaza
New York, NY 10007

P.O. QUIZHPI
(shield # unknown)
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DONTAY McDONALD,

Plaintiff,

Index #

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SERGEANT SWIFT
(shield No.26931), P.O. QUIZHPI (shield # unknown) and
P.O. "JOHN DOES and "JANE DOES 1-5" (shield No's unknown)
said names being fictitious and unknown,

Defendants
-----X

Plaintiff, by his attorneys, BURNS & HARRIS, as and for Verified Complaint herein,
respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION:

1. That this action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983, 1985, 1986 and 1988, and the rights under the Constitution and laws of the State of New York.

2. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as officers of said City and State.

3. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York.

4. That at all times herein mentioned, the defendant THE CITY OF NEW YORK was a corporation doing business in the State of New York.

5. That at all times herein mentioned, the defendant THE CITY OF NEW YORK operated a police department as part of and in conjunction with its municipal function.

6. That at all times herein mentioned, the defendant THE CITY OF NEW YORK maintained said police department.

7. That at all times herein mentioned, the defendant THE CITY OF NEW YORK managed said police department.

8. That at all times herein mentioned, the defendant THE CITY OF NEW YORK controlled said police department.

9. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, its servants, agents and/or employees employed P.O.s, detectives, and other personnel, to work as representatives of THE CITY OF NEW YORK.

10. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, its servants, agents, P.O.s, detectives, employees and/or personnel to provide for and/or ensure the safety, protection, security and well-being of peaceful and law-abiding citizens.

11. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its servants, agents, P.O.s, detectives, employees and/or personnel provide for and/or ensure the safety, protection, security and well-being of persons who were in the presence, proximity, custody and/or control of the said police department, officers, detectives and/or personnel.

12. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of its said servants, agents, P.O.s, detectives and/or employees conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

13. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that its said servants, agents, P.O.s, detectives and/or employees conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

14. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a P.O. known as SERGEANT SWIFT (shield No. 26931) to work as a representative of THE CITY OF NEW YORK.

15. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant P.O. SERGEANT SWIFT (shield No. 26931) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

16. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that said defendant P.O. SERGEANT SWIFT (shield No. 26931) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

17. That at all times herein mentioned, the defendant SERGEANT SWIFT (shield No. 26931) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

18. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a P.O. known as SERGEANT SWIFT (shield No. 26931) to work as a representative of THE CITY OF NEW YORK.

19. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant P.O. SERGEANT SWIFT (shield No. 26931) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

20. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that said defendant P.O. SERGEANT SWIFT (shield No. 26931) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

21. That at all times herein mentioned, the defendant P.O. SERGEANT SWIFT (shield No. 26931) had the duty to ensure that his actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

22. That at all times herein mentioned, the defendant P.O. SERGEANT SWIFT (shield No. 26931) had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

23. That at all times herein mentioned, the defendant P.O. QUIZHPI (shield No. unknown) was a servant, agent, employee and/or representative of the defendant THE CITY OF NEW YORK.

24. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a Police Officer known as P.O. QUIZHPI (shield No. unknown) to work as a representative of THE CITY OF NEW YORK.

25. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant P.O. QUIZHPI (shield No. unknown) conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

26. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that said defendant P.O. QUIZHPI (shield No. unknown) conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

27. That at all times herein mentioned, the defendant P.O. QUIZHPI (shield No. unknown) had the duty to ensure that his actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

28. That at all times herein mentioned, the defendant P.O. QUIZHPI (shield No. unknown) had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

29. That at all times herein mentioned, the defendant THE CITY OF NEW YORK employed a P.O. and/or officers named herein as "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being Police Officers and personnel of the New York City Police Department to work as representatives of THE CITY OF NEW YORK.

30. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that the actions, activities and behavior of said defendant P.O. and/or officers named herein as "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being P.O.s and personnel of the New York City Police Department conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

31. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, had the duty to sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels so as to ensure that said defendant P.O. and/or officers named herein as "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being P.O.s and personnel of the New York City Police Department conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

32. That at all times herein mentioned, the defendants "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being P.O.s and personnel of the New York City Police Department were servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

33. That at all times herein mentioned, the defendants "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being P.O.s and personnel of the New York City Police Department had the duty to ensure that their actions, activities and behavior conform to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

34. That at all times herein mentioned, the defendants "JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, persons intended being P.O.s and personnel of the New York City Police Department had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

35. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD, was present upon and/or in the vicinity of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York.

36. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD, was present upon premises located at 841 Gates Avenue, apartment #2D, in the County of Kings, City and State of New York.

37. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD, was lawfully and peacefully present upon and/or within said premises located at 841 Gates Avenue, apartment #2D, in the County of Kings, City and State of New York.

38. That on the 6th day of March, 2016, certain police officers, sergeants, detectives and/or officers of the defendant, THE CITY OF NEW YORK, were present upon, within and/or in the vicinity of premises located at and in the vicinity of 841 Gates Avenue, in the County of Kings, City and State of New York.

39. That on the 6th day of March, 2016, certain police officers, sergeants, detectives and/or officers of the defendant, THE CITY OF NEW YORK, were present upon and within apartment #2D within premises located 841 Gates Avenue, in the County of Kings, City and State of New York.

40. That on the 6th day of March, 2016, said police officers , sergeants, detectives and/or officers of the defendant, THE CITY OF NEW YORK, were present upon, within and/or in the vicinity of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York, in the course and scope of their employment for the defendant THE CITY OF NEW YORK.

41. That on the 6th day of March, 2016, said P.O. SERGEANT SWIFT (shield No. 26931) was present upon, within and/or in the vicinity of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York, in the course and scope of his employment for the defendant THE CITY OF NEW YORK.

42. That on the 6th day of March, 2016, said P.O. SERGEANT SWIFT (shield No. 26931) was present upon and/or within apartment #2D premises said located at 841 Gates Avenue, in the County of Kings, City and State of New York, in the course and scope of his employment for the defendant THE CITY OF NEW YORK.

43. That on the 6th day of March, 2016, said P.O. QUIZHPI (shield No. unknown) was present upon, within and/or in the vicinity of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York, in the course and scope of his employment for the defendant THE CITY OF NEW YORK.

44. That on the 6th day of March, 2016, said P.O. QUIZHPI (shield No. unknown) was present upon and/or within apartment #2D premises said located at 841 Gates Avenue, in the

County of Kings, City and State of New York, in the course and scope of his employment for the defendant THE CITY OF NEW YORK.

45. That on the 6th day of March, 2016, the defendants, P.O."JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, said names being fictitious and presently unknown, were present upon, within and/or in the vicinity of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York.

46. That on the 6th day of March, 2016, the defendants, P.O."JOHN DOES and JANE DOES 1-5", said names being fictitious and unknown, said names being fictitious and presently unknown, were present upon and/or within apartment #2D upon said premises located at 841 Gates Avenue, in the County of Kings, City and State of New York, in the course and scope of their employment as P.O.s, sergeants and/or detectives for the defendant THE CITY OF NEW YORK.

47. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD, was assaulted and battered by said police officers, sergeants, detectives and/or officers while he was present upon and within apartment #2D, located at 841 Gates Avenue, in the County of Kings, City and State of New York.

48. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD, was wantonly, intentionally, maliciously, illegally, repeatedly and brutally assaulted, imprisoned, attacked, beaten and battered by said police officers, sergeants, detectives and/or officers while he was present upon and within apartment #2D, of premises located at 841 Gates Avenue, in the County of Kings, City and State of New York.

49. That by reason of the foregoing, the plaintiff DONTAY McDONALD, was injured.

50. That the foregoing occurrence and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force, chase and wrongful assault and battery on the part of the defendants, their servants, agents, police officers and/or employees, who conspired to and did fail to prevent the violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

51. That this action arises under the United States Constitution, particularly under provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

52. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

53. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force, chase and wrongful assault and battery on the part of the defendant, its servants, agents, police officers, and/or employees, in violation of the plaintiff's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

54. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

55. That heretofore, and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff, and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

56. That more than thirty (30) days have elapsed since the aforesaid Notices of Claim were served on the said defendant.

57. That the defendant was negligent and has refused and neglected to adjust, settle and pay the same.

58. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

59. That all conditions and requirements precedent to the commencement of this action have been complied with.

60. That oral examination of the plaintiff has been conducted on November 4, 2016 by the defendants in compliance with Section 50-H of the General Municipal Law.

61. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

62. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

63. Pursuant to CPLR Section 1602(2)(iv), the defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

64. Pursuant to CPLR Section 1602(5), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants' wrongful conduct was intentional.

65. Pursuant to CPLR Section 1602(11), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of

the provisions of the CPLR Section 1601, by reason of the fact that defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of plaintiff's injuries.

66. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION:

67. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

68. That on the 6th day of March, 2016, the defendant police officers herein engaged in prolonged irrational, unwarranted and groundless incidents of violently, savagely, brutally and relentlessly attacking, assaulting, beating, punching, kicking and striking the plaintiff in and about the legs, body and head, with closed fists, dangerous objects, feet, knees and rigid shoes, standing and stomping on his injured body parts after he had fallen to the ground and lay seriously injured and defenseless, causing the plaintiff to suffer additional injuries and seriously aggravating, exacerbating and worsening the injuries he had suffered at the hands of the defendants.

69. That by reason of the foregoing, the plaintiff suffered serious additional injuries and egregious aggravation, exacerbation, worsening, progression, enhancement and deterioration of the injuries he had sustained at the hands of the defendants herein.

70. That by reason of the foregoing, the plaintiff has sustained serious injuries and damages in an amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION:

71. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

72. That on the 6th day of March, 2016, the plaintiff DONTAY McDONALD was intentionally, illegally, falsely and wrongfully arrested by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and detained the plaintiff for an unreasonable period of time thereafter until he was released.

73. That on the 6th day of March, 2016, and while laying seriously injured and defenseless, the plaintiff DONTAY McDONALD was intentionally, illegally, falsely and wrongfully arrested, forcefully handcuffed excessively tightly, moved, pushed, shoved, kicked, searched, seized and manipulated by said police officers, without probable or just cause or provocation, who falsely accused the plaintiff of crimes of which he was wholly innocent, and detained the plaintiff for an unreasonable period of time thereafter until he was released.

74. That the said police officers were employees of the defendant THE CITY OF NEW YORK, and were acting within the scope of their employment for the said defendant.

75. That on the 6th day of March, 2016, the defendant THE CITY OF NEW YORK, by its said police officers, servants, agents and/or employees and personnel, including the

defendants named herein, acting within the scope of their employment by the said defendant did falsely arrest the plaintiff and detain him without just cause or provocation.

76. That the plaintiff DONTAY McDONALD was fully conscious of the false arrest, detention and confinement, did not consent to same, and such confinement was not otherwise privileged.

77. That by reason of the foregoing, the plaintiff was caused to suffer severe and serious injuries and damages both physically and mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, and plaintiff was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

78. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION:

79. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action and the Second Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

80. That on the 6th day of March, 2016, and for an egregiously long period of time thereafter, the plaintiff was caused to be intentionally, maliciously, illegally, falsely and wrongfully arrested, detained, imprisoned, incarcerated, hospitalized as a prisoner and criminal and deprived of his civil and constitutional rights, freedom, urgently required medical treatment and liberty for an unreasonable period of time by the defendants herein until he was discharged.

81. That on the 6th day of March, 2016, the defendants did falsely, illegally, wrongfully, intentionally and maliciously arrest, detain and imprison the plaintiff, depriving him of his rights, liberty, urgently required medical treatment and freedom for an unreasonable period of time, all without any just cause or provocation.

82. That the plaintiff DONTAY McDONALD was fully conscious of the wrongful, intentional and illegal imprisonment, detention and confinement, did not consent to same, and such confinement was not otherwise privileged.

83. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely and further injured and damaged.

84. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION:

85. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third and Fourth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

86. That at all times herein mentioned, the defendants further relentlessly and egregiously failed and refused to provide for the safety, security and protection of the plaintiff.

87. That at all times herein mentioned, the said defendants negligently failed to sufficiently hire, train and retain employees within the Police Academy and at the Command,

Precinct and Patrol levels so as to ensure and provide for the safety, security and protection of the plaintiff.

88. That at all times herein mentioned, the said defendants negligently failed to prevent the within incidents of extraordinary violence and intentional infliction of physical and emotional distress by police officers and/or personnel who were acting within the course and scope of their employment for the said defendants herein.

89. That by reason of the foregoing, the plaintiff was injured.

90. That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, negligent hiring, retention, training and supervision on the part of the defendants inducing and permitting a failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of the defendants, and without any negligence on the part of the plaintiff contributing thereto.

91. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SIXTH CAUSE OF ACTION:

92. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth and Fifth Causes of action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

93. That the defendants herein carelessly, negligently, wrongfully, wantonly, intentionally and maliciously targeted the plaintiff in an act of racial profiling, in connection with accusations, charges, slander, arrest, detention, imprisonment and assault, due to his race.

94. That the said discriminatory actions and racial profiling on the part of the defendants herein, their agents, servants, police officers, employees and/or representatives, unfairly discriminated against individuals of color and/or ethnicity in violation of Federal Civil Rights Laws, the Constitutions of the United States and of New York State.

95. That by reason of the foregoing, the plaintiff has suffered severe damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION:

96. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

97. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1981, 1983, 1985, 1986 and 1988), the Civil Rights Act, and arising under the law and statutes of the State of New York.

98. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

99. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION:

100. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

101. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological, racist, biased and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

102. That at all times herein mentioned, it was the duty of the said defendant to sufficiently hire, train and retain personnel within the Police Academy and at the Command, Precinct and Patrol levels so as sufficiently discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, police officers, employees and/or personnel.

103. That by reason of the negligence of the said defendant in their hiring, monitoring, supervision and retention of said defendant police officers, with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of said duties, the plaintiff was caused to suffer severe injuries

and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

104. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A NINTH CAUSE OF ACTION:

105. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

106. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by use of excessive force.

107. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede and prevent the further, continuing and unremitting violation of a person's, including the plaintiff's, constitutional rights resulting in further serious injuries caused as a result of said failure.

108. That at all times herein mentioned, the defendant THE CITY OF NEW YORK had an affirmative duty to intercede when a person's, including the plaintiff's, constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

109. That at all times herein mentioned, the defendant THE CITY OF NEW YORK intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when a the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by use of excessive force.

110. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede and prevent the further, continuing and unremitting violation of the plaintiff's civil and constitutional rights resulting in further serious injuries caused as a result of said failure.

111. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, intentionally, illegally, maliciously and egregiously breached and violated its affirmative duty to intercede when the plaintiff's civil and constitutional rights were being violated in defendants' witnessed presence by falsifying evidence of probable cause to arrest the plaintiff.

112. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A TENTH CAUSE OF ACTION:

113. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

114. That the defendants herein failed, neglected, omitted and refused to report and correct, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of

the defendant police officers herein.

115. That the defendants herein intentionally, wantonly, negligently and maliciously conspired and acted in collusion in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendant P.O.s herein.

116. That the defendants herein intentionally, wantonly, negligently and maliciously constructed and maintained a Blue Wall of Silence in failing, neglecting, omitting and refusing to report, rectify and/or discontinue the misconduct, improprieties, violations and malfeasance of the defendant police officers herein, in violation of 42 U.S.C. 1985.

117. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious injuries in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION:

118. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

119. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983, 1985, 1986 and 1988) and arising under the law and statutes of the State of New York.

120. That the defendant, THE CITY OF NEW YORK have a custom or policy of using excessive force on minorities.

121. That the said defendants custom or policy of using excessive force on minorities can be inferred from the facts and circumstances surrounding cases like Cardoza v. City of New York, Supreme Court, Bronx County, Index No. 307977-2008, Ferguson v. City of New York, Supreme Court, Bronx County, Index No. 18951-2001, Juanita Young v. City of New York, Supreme Court, Bronx County, Index No. 301162-2007, Martire v. City of New York, Supreme Court, New York County, Index No. 106827-2008 and other similar excessive force, civil rights actions that have been brought against defendant THE CITY OF NEW YORK.

122. That the deprivation of plaintiff's constitutional rights was the result of defendant THE CITY OF NEW YORK's custom or policy of using excessive force on minorities.

123. That the defendant THE CITY OF NEW YORK has a custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas.

124. That the defendant THE CITY OF NEW YORK's custom or policy of falsely arresting innocent persons in order to meet productivity goals and quotas can be inferred from the facts and circumstances surrounding cases like Schoolcraft v. City of New York, United States District Court, Southern District of New York, Index No. 10 CV 06005, and other similar false arrest, unconstitutional quota civil rights actions that have been brought against defendant THE CITY OF NEW YORK.

125. That the defendant THE CITY OF NEW YORK's custom or policy of improper stops, searches, strip-searches and seizures can be inferred from the facts and circumstances surrounding cases like Preston v. City of New York, Supreme Court, Kings County, 493-2008, People v. William Eiseman, and other similar illegal search and seizure civil rights actions that

have been brought against defendant THE CITY OF NEW YORK and from defendant THE CITY OF NEW YORK's UF-250 and CCRB data.

126. That at all times herein mentioned, the defendant THE CITY OF NEW YORK, carelessly, negligently, intentionally, wantonly, deliberately, unscrupulously, immorally and unequivocally protected, disconnected, shielded and isolated police officers, administrators and precincts, including the defendants herein, from liability, culpability and accountability for their ongoing, intentional, malicious, deplorable, evolving and expanding custom, protocol and regimen of notorious, disgraceful and appalling violations of constitutional and civil rights, liberty and freedom by virtue of creating and maintaining a blue wall and code of silence among P.O.s, administrators and precincts, at the policy making level, even in their intentional, wanton and dissolute failure, neglect and refusal to properly and adequately investigate, discipline, suspend, terminate, expel, demote, dismiss and/or reassign such police officers, including the defendants herein, in response to the increasingly large numbers of civil rights claims, lawsuits, dismissals, declined prosecutions, City Council hearings, newspaper and TV reports and complaints against THE CITY OF NEW YORK for said continually expanding custom and regimen of unreasonable and unconscionable use of excessive, unnecessary, unwarranted and egregious force, false arrest, imprisonment, malicious prosecution, violence, and savage brutality by said police officers, thereby creating, condoning, sanctioning, sustaining, promoting, encouraging and fostering such climate, custom, practice, policy and regimen of increasingly outrageous misconduct, lies, falsification, corruption and abuse, all with deliberate indifference, without fear of reprisal, for the public safety, protection and well-being.

127. That the deprivation of plaintiff's constitutional rights was the result of defendant THE CITY OF NEW YORK's custom or policy of performing improper stops, searches, strip-searches and seizures.

128. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of plaintiff's rights under the Constitution, created by a deliberate indifference to the plaintiff's rights, by policy-level decision on the part of the defendant THE CITY OF NEW YORK to act, or fail to act.

129. That the defendant THE CITY OF NEW YORK engaged in a policy, regimen, routine or custom of deliberate indifference so widespread and ingrained as to "have the force of law."

130. That by reason of all of the foregoing, the plaintiff suffered serious injury due to the deprivation of rights under the Constitution, created by such regimen, routine and custom of deliberate indifference to the plaintiff's rights, by policy-level decision on the part of said defendant THE CITY OF NEW YORK to act, or fail to act.

131. That by reason of all of the foregoing, the plaintiff brings a Monell Claim for serious injury and damages he suffered as a result of the deliberate indifference and heightened level of culpability on the part of the defendants THE CITY OF NEW YORK.

WHEREFORE, plaintiff demands judgment against the defendants, the amount sought on each Cause of Action exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Dated: New York, New York
November 28, 2016

Yours, etc.,

BURNS & HARRIS
Attorneys for Plaintiff



DAVID L. HENDERSON
233 Broadway – Suite 900
New York, New York 10279
(212) 393-1000

ATTORNEY VERIFICATION

DAVID L. HENDERSON, ESQ., an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am the attorney for plaintiff in the within action and have read the foregoing **COMPLAINT** and know the contents thereof; the same is true upon information and belief.

This verification is made by your affirmant and not by plaintiff because plaintiff resides in a County other than the County wherein your affirmant maintains his office.

The grounds of your affirmant's knowledge and belief are as follows: Conferences with client and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 28, 2016



DAVID L. HENDERSON

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DONTAY MCDONALD,
Plaintiff,

- against -

THE CITY OF NEW YORK, SERGEANT SWIFT
(shield No.26931), P.O. QUIZHPI (shield # unknown) and
P.O. "JOHN DOES and "JANE DOES 1-5" (shield No's unknown)
said names being fictitious and unknown,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BURNS & HARRIS, ESQS.

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